

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amgad Fawzy	Team: Team # 3	CCRB Case #: 201206462	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/19/2012 3:15 PM	Location of Incident: East 46th Avenue & Church Avenue	Precinct: 67	18 Mo. SOL 11/19/2013	EO SOL 11/19/2013	
Date/Time CV Reported Sun, 05/20/2012 1:21 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 05/20/2012 1:22 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Goldin	06323	949039	PBBS
2. POM James Berk	02974	949358	PBBS

Officer(s)	Allegation	Investigator Recommendation
A.POM Steven Goldin	Force: PO Steven Goldin used physical force against § 87(2)(b)	
B.POM James Berk	Force: PO James Berk used physical force against § 87(2)(b)	
C.POM Steven Goldin	Abuse: PO Steven Goldin threatened to arrest § 87(2)(b)	

Case Summary

On May 20, 2012, § 87(2)(b) filed this complaint online with the Civilian Complaint Review Board (CCRB) (encl. 3a-3e).

On May 19, 2012, PO Steven Goldin and PO James Berk stopped § 87(2)(b)'s vehicle at the corner of East 46th Avenue and Church Avenue in Brooklyn. The following allegations resulted:

- **Allegation A – Force:** PO Steven Goldin used physical force against § 87(2)(b).
- **Allegation B – Force:** PO James Berk used physical force against § 87(2)(b) § 87(2)(g).
- **Allegation C – Abuse of Authority:** PO Steven Goldin threatened to arrest § 87(2)(b) § 87(2)(g).

Mediation was presented to § 87(2)(b) over the phone on May 22, 2012, but he chose to pursue investigation instead (encl. 11a). Mediation was again offered to § 87(2)(b) during his in-person sworn statement on June 6, 2012, but he reiterated his desire to pursue the investigation option.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b), 5'11" tall, 195-pound black male with black hair and brown eyes. He is an employee of the § 87(2)(b).

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on June 6, 2012 (encl. 5c-5i).

At approximately 3:15 p.m. on May 19, 2012, § 87(2)(b) brought his vehicle to a stop at the intersection of East 46th Avenue and Church Avenue in Brooklyn. All four windows were rolled down at the time and music was playing from the vehicle's sound system. § 87(2)(b) stated that the music could be heard from outside the vehicle, but was not so loud as to constitute a public nuisance. PO James Berk, whom § 87(2)(b) identified by name, stepped in front of § 87(2)(b)'s vehicle and motioned for him to stop. He then approached the driver's side and requested § 87(2)(b)'s license, and § 87(2)(b) asked why. The two repeated this exchange twice more, until PO Berk said, "Once you give me your license, I'll let you know." § 87(2)(b) then handed PO Berk his license, at which point the officer instructed him to pull over on the left in front of a double-parked vehicle, which § 87(2)(b) did.

PO Berk then situated himself approximately 10 feet behind § 87(2)(b)'s vehicle and was joined by PO Steven Goldin – whom § 87(2)(b) also identified by name – and an unidentified male Hispanic officer in uniform. Hoping to ask the officers why he had been stopped, § 87(2)(b) opened his door and placed one leg outside the vehicle with the intention of exiting the vehicle. All three officers then rushed to the driver's side and proceeded to push the door shut on § 87(2)(b)'s foot while shouting for him to remain in the vehicle. As they did so, § 87(2)(b) was pushing the door open and shouting for them to stop pushing his door. He did not sustain any injuries or physical discomfort as a result. PO Goldin repeatedly exclaimed, "Get back in the car or get arrested!" Moments later, PO Goldin shouted, "Let's just arrest this guy!" and began pulling § 87(2)(b)'s arm while standing on his foot and attempting to pull the door open. When § 87(2)(b) asked him why he was standing on his foot, PO Goldin replied, "Because I feel like it." § 87(2)(b) then requested the presence of a sergeant, saying, "I don't like how you guys are handling this."

A sergeant, whom the investigation identified as Sgt. Jean Claude Beaudu of Patrol Borough Brooklyn South (PBBS), eventually arrived in a marked RMP, accompanied by two uniformed officers

who remained in the vehicle. After Sgt. Beaudu conferred with PO Berk, PO Goldin and the other officer on the scene, § 87(2)(b) informed him that he planned to file a complaint regarding the encounter. Sgt. Beaudu offered to assist § 87(2)(b) in filing his complaint, but his assistance was rebuffed. § 87(2)(b) then wrote down the names and shield numbers of PO Berk and PO Goldin. PO Berk then issued § 87(2)(b) three summonses, § 87(2)(a) 160.50 § 87(2)(b) denies that any of the officers ever requested his insurance card during the encounter, and disputed the second summons, challenging PO Berk to show him the reading his music produced on a decibel meter.

NYPD Statements

Subject Officer: PO STEVEN GOLDIN

- PO Goldin is a § 87(2)(b)-old, 5'9" tall, 215-pound white male with brown hair and hazel eyes.
- On May 19, 2012, PO Goldin of Patrol Borough Brooklyn South worked from 1:30 p.m. to 10:05 p.m. He was in uniform, assigned to foot post 58 for the 67th Precinct and working with PO James Berk.

Memo Book

At 3:05 p.m., PO Goldin assisted PO Berk with a vehicle stop at the corner of Church Avenue and East 46th Street. He noted that the motorist refused to present identification, opened his door and exited the vehicle without permission. When told to remain in the vehicle by both PO Goldin and PO Berk, he refused. The motorist was screaming, acting disorderly and causing public alarm and annoyance. PO Goldin noted that the vehicle stop was initiated for unreasonable noise from a vehicle, namely music that he could hear from one city block away. At 3:30 p.m., PO Berk issued § 87(2)(b) three summonses (encl. 6a-6c).

CCRB Testimony

PO Steven Goldin was interviewed at the CCRB on October 11, 2012 (encl. 6d-6f).

At approximately 3:15 p.m. on May 19, 2012, PO Goldin was standing at the corner of East 46th Street and Church Avenue in Brooklyn with PO Berk when they heard music coming from a vehicle down the block. As the vehicle reached the corner of East 46th Street and Church Avenue, it stopped at a red light. PO Berk approached it and asked the motorist, § 87(2)(b) "Sir, can I see your license, please?" § 87(2)(b) refused and continued to inch forward.

PO Goldin was approximately 5 or 10 feet away from the vehicle when PO Berk approached it. He stated later that he could not hear exactly what PO Berk said to § 87(2)(b) upon approaching him, nor could he hear what § 87(2)(b) was saying, though the latter appeared to be argumentative. He observed that § 87(2)(b) had an angry expression on his face and was speaking in a loud tone of voice. He does not recall if § 87(2)(b) was doing anything with his hands when PO Berk stopped him.

§ 87(2)(b) eventually pulled over to the curb and exited the vehicle. As he did so, PO Goldin walked to the passenger's side. When § 87(2)(b) exited the vehicle, PO Goldin came around to the driver's side. Both he and PO Berk approached § 87(2)(b) and stated, "Sir, get back in your vehicle," approximately 4 to 6 times. § 87(2)(b) responded to their request in an erratic fashion, moving his arms around, shifting his gaze and loudly questioning their authority with statements along the lines of, "You can't tell me what to do. I know my rights." PO Goldin continued, "For our safety, we need you to step back in your vehicle." § 87(2)(b) replied, "You can't tell me what to do." PO Goldin and PO Berk then each stated, "You'll be arrested if you don't step back in your vehicle."

PO Goldin is not certain whether he used the exact phrase, "Get back in the car or get arrested." PO Goldin did not make any physical contact with § 87(2)(b) and does not recall whether PO Berk did. He believes that he and PO Berk may have held their hands out to contain § 87(2)(b) when he exited his vehicle. Approximately 10 to 15 people gathered to observe the encounter.

He does not believe that either he or PO Berk pushed or pulled on the driver's side door of § 87(2)(b)'s vehicle, nor did PO Goldin ever step on § 87(2)(b)'s foot. He recalls § 87(2)(b) complaining about him stepping on his foot, stating, "Why did you step on my foot?" PO Goldin replied, "I didn't step on your foot." PO Goldin believes that § 87(2)(b) complained because his foot accidentally touched PO Goldin's as he was exiting the vehicle. § 87(2)(b) eventually became calm, gave his identification to PO Berk and requested the presence of a sergeant at the scene. PO Goldin does not recall Sgt. Beaudu spoke to either him or PO Berk before talking to § 87(2)(b). PO Goldin believes that Sgt. Beaudu explained to § 87(2)(b) why he was being issued a summons.

PO Goldin was not working with any officers aside from PO Berk on the date of the incident.

Subject Officer: PO JAMES BERK

- PO Berk is a § 87(2)(b)-old, 5'7" tall, 140-pound white male with brown hair and brown eyes.
- On May 19, 2012, PO Berk of Patrol Borough Brooklyn South worked from 1:30 p.m. to 10:05 p.m. He was in uniform and assigned to foot post 59 in the 67th Precinct. He was working with PO Steven Goldin.

Summons § 87(2)(b)

PO Berk issued criminal summons § 87(2)(b) to § 87(2)(b) at 3:10 p.m. on May 19, 2012. § 87(2)(a) 160.50

Memo Book

At 3:10 p.m., PO Berk issued § 87(2)(b) summons number § 87(2)(b) § 87(2)(a) 160.50

§ 87(2)(b) criminal summons number § 87(2)(b) § 87(2)(a) 160.50

, and summons number § 87(2)(b) § 87(2)(a) 160.50

PO Berk heard loud music accompanied by extremely loud bass coming from the corner of East 46th Street and Linden Boulevard, one city block away from where he was standing, on East 46th Street and Church Avenue. The music coming from § 87(2)(b)'s vehicle activated a number of car alarms in the area. When PO Berk stopped § 87(2)(b)'s vehicle, he explained to him why he was being stopped and told him to pull over. § 87(2)(b) initially refused, causing PO Berk to repeat his directive. § 87(2)(b) then complied, at which point PO Berk requested his insurance and registration. § 87(2)(b) refused to provide them and exited his vehicle. PO Berk and PO Goldin both ordered § 87(2)(b) to return to his vehicle, and he refused to do so. PO Berk then shoved him back into his vehicle, causing § 87(2)(b) to yell and curse, creating a public alarm. A number of passersby stopped to observe the encounter (encl. 7a-7d).

CCRB Testimony

PO James Berk was interviewed at the CCRB on October 23, 2012 (encl. 7h-7j). § 87(2)(g)

After motioning for him to stop his vehicle, PO Berk observed § 87(2)(b) starting to go in reverse, and being prevented from doing so by another vehicle exiting a driveway, situated perpendicular to his vehicle.

After handing PO Berk his license and pulling his vehicle over to the corner, § 87(2)(b) exited his vehicle and stood by the open driver's side door. At no point was he ordered to do so, nor did PO Berk hear PO Goldin threaten to arrest § 87(2)(b). Upon exiting his vehicle, § 87(2)(b) was shouting and gesturing with his hands above PO Berk's head. In response, PO Berk placed the fingers of both hands on

§ 87(2)(b)'s chest, keeping him at an arm's distance away. At this point, § 87(2)(b) returned to his vehicle of his own free will while stating, "This is all BS," and accusing the officers of harassing him. Because the encounter happened so quickly, PO Berk does not know whether PO Goldin stepped on § 87(2)(b)'s foot and pulled his arm at any point during the encounter.

The § 87(2)(a) 160.50 summons PO Berk issued to § 87(2)(b) § 87(2)(a) 160.50

Summons for Incident and Disposition

- § 87(2)(a) 160.50

Status of Civil Proceedings

- As of October 22, 2012, approximately two months past the 90-day filing deadline, § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to this incident (encl. 10).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian's CCRB History

- This is the second CCRB complaint filed by § 87(2)(b) § 87(2)(g)

Subject Officers' CCRB History

- PO Steven Goldin has been a member of the service for 2 years and there are no substantiated CCRB allegations against him (encl. 1a).
- PO James Berk has been a member of the service for 2 years and there are no substantiated CCRB allegations against him (encl. 1b).

Conclusion

Identification of Subject Officers

- PO Steven Goldin and PO James Berk acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Force: PO Steven Goldin used physical force against § 87(2)(b)

Allegation B – Force – PO James Berk used physical force against § 87(2)(b)

§ 87(2)(b) alleged that when he opened his car door and placed his leg outside the vehicle, PO Berk, PO Goldin and a third unidentified officer proceeded to push the door shut on his foot. He stated that he did not sustain any injuries or physical discomfort as a result. § 87(2)(b) further testified that PO Goldin then grabbed his arm and pulled on it while simultaneously stepping on his foot.

PO Goldin denies pulling § 87(2)(b)'s arm or stepping on his foot during the encounter, testifying that § 87(2)(b) had already exited his vehicle before he and PO Berk approached him and ordered him to return to his vehicle. He further testified that neither he nor PO Berk made any physical contact with § 87(2)(b) and may have only held their hands out to keep him at a safe distance. PO Goldin does not recall PO Berk attempting to push § 87(2)(b)'s car door shut. He further stated that, contrary to § 87(2)(b)'s recollection that a third officer was present, he was working only with PO Berk on the date of the incident and that no other officer was present during the encounter.

PO Berk did not recall whether PO Goldin pulled § 87(2)(b)'s arm or stepped on his foot because the event transpired so quickly. According to PO Berk, § 87(2)(b) fully exited the vehicle during the encounter. He recalls lightly touching § 87(2)(b)'s chest with his fingers in an attempt to keep him at a safe distance while ordering him to return to his vehicle.

§ 87(2)(g)

Allegation C – Abuse of Authority: PO Steven Goldin threatened to arrest § 87(2)(b)

According to § 87(2)(b) PO Goldin repeatedly threatened to arrest him while ordering him to remain in his vehicle. PO Goldin testified that after ordering a noncompliant § 87(2)(b) to return to his vehicle approximately 4 to 6 times, PO Goldin explained to him that he needed to return to his vehicle for the officers' safety. When § 87(2)(b) again refused, PO Goldin threatened to arrest him. § 87(2)(g)

PO Berk issued § 87(2)(b) criminal summons § 87(2)(b) § 87(2)(a) 160.50

§ 87(2)(g)

Team: 3

Investigator: _____ Amgad Fawzy 01/15/2013
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date